

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUOE045871: KIMBERLY LYNN ASH vs FORWARD MEMBER SOLUTIONS, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY, et al.

07/30/2026 in Department 44

Motion to Compel Reponses to Eight Sets of Discovery Against Forward Member Solutions, Inc. & Oceanair Federal Credit Union

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

1. Plaintiff’s Motion to Compel Responses Without Objection to Requests for Production of Documents (Set One) Against Forward Member Solutions, LLC (*Opposed*)
2. Plaintiff’s Motion to Compel Responses Without Objection to Special Interrogatories (Set One) Against Forward Member Solutions, LLC (*Opposed*)
3. Plaintiff’s Motion to Compel Responses Without Objection to Form Interrogatories-General (Set One) Against Forward Member Solutions, LLC (*Opposed*)
4. Plaintiff’s Motion to Compel Responses Without Objection to Form Interrogatories-Employment (Set One) Against Forward Member Solutions, LLC (*Opposed*)
5. Plaintiff’s Motion to Compel Responses Without Objection to Requests for Production of Documents (Set One) Against OceanAir Federal Credit Union fka CBC Federal Credit Union fka USN (*Opposed*)

6. Plaintiff's Motion to Compel Responses Without Objection to Special Interrogatories (Set One) Against OceanAir Federal Credit Union fka CBC Federal Credit Union fka USN (*Opposed*)

7. Plaintiff's Motion to Compel Responses Without Objection to Form Interrogatories-General (Set One) Against OceanAir Federal Credit Union fka CBC Federal Credit Union fka USN (*Opposed*)

8. Plaintiff's Motion to Compel Responses Without Objection to Form Interrogatories-Employment (Set One) Against OceanAir Federal Credit Union fka CBC Federal Credit Union fka USN (*Opposed*)

Tentative Ruling: Plaintiff's eight motions to compel discovery are GRANTED.

Defendants' request for relief from waiver is be DENIED with the exception of any objections based on the attorney-client privilege or the work-product doctrine. To the extent Defendants assert any objections based on either or both of these two grounds, Defendants shall also produce a privilege log concerning same. The Court GRANTS Plaintiff's request for sanctions, and awards a reduced, consolidated monetary sanction of \$6,965 against O'Hagan Meyer LLP.

The request to extend the class-certification deadline is be DENIED without prejudice because it was first raised in the reply.

I. Background

A. Factual Background

Plaintiff Kimberly Lynn Ash ("Plaintiff") alleges that she worked for Defendants Forward Member Solutions, LLC ("Forward") and OceanAir Federal Credit Union, formerly known as CBC Federal Credit Union and U S N ("OceanAir") (collectively, "Defendants") as an hourly, nonexempt Mortgage Servicer from approximately January 17, 2023 through July 22, 2024. Plaintiff alleges that both Defendants employed her and the proposed class members, controlled their wages, hours, and working conditions, and are jointly responsible for the challenged employment practices. (FAC, ¶¶ 8, 10-14.)

Plaintiff alleges that Defendants maintained uniform, company-wide wage-and-hour practices applicable to hourly, nonexempt employees. According to the First Amended Complaint ("FAC"), employees regularly worked more than eight hours per day or 40 hours per week but were not paid for all hours worked or all overtime. The alleged uncompensated work included logging into multiple computer applications before clocking in and dropping off mail or packages outside scheduled working hours. Plaintiff also alleges that Defendants failed to include nondiscretionary bonuses and other remuneration when calculating employees' regular rates for overtime, break premiums, and sick pay. (FAC, ¶¶ 15-17.)

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Plaintiff alleges that employees were not provided timely, uninterrupted meal and rest periods because they were required to prioritize urgent work, including servicing existing loans, taking client telephone calls, and assisting clients with forms and payments. These duties allegedly caused employees' breaks to be delayed, shortened, interrupted, or missed, without payment of the required premium wages. (FAC, ¶¶ 18-19.)

Plaintiff alleges that Defendants also required employees to use personal vehicles for work-related tasks, including delivering mail and packages, without adequately reimbursing the resulting expenses. She further alleges that Defendants failed to pay all outstanding wages when employment ended, failed to maintain accurate time and meal-period records, and issued wage statements that did not accurately report hours, rates, gross wages, net wages, and break-premium compensation. (FAC, ¶¶ 20-22.)

The proposed class consists of all persons employed by either Defendant in California as hourly, nonexempt employees during the period beginning four years before the filing of the original complaint and ending when class notice is sent. Plaintiff estimates that the class exceeds 100 persons. She also seeks PAGA penalties on behalf of herself, the State of California, and current and former hourly, nonexempt employees who worked for Defendants during the applicable period. (FAC, ¶¶ 2-3, 23-31.)

The First Amended Complaint asserts nine causes of action against both defendants:

1. Failure to pay minimum wages;
2. Failure to pay overtime compensation;
3. Failure to provide meal periods;
4. Failure to authorize and permit rest periods;
5. Failure to reimburse necessary business expenses;
6. Failure to timely pay final wages;
7. Failure to provide accurate itemized wage statements;
8. Unfair business practices; and
9. Civil penalties under PAGA.

Plaintiff seeks class certification, unpaid wages and premiums, liquidated damages, expense reimbursement, waiting-time and wage-statement penalties, restitution, injunctive relief, PAGA penalties, interest, attorney fees, and costs.

B. Procedural Background

Plaintiff filed the original class action complaint on June 18, 2025. On the same date, she submitted a PAGA notice to the Labor and Workforce Development Agency and sent notice to Defendants identifying the alleged Labor Code violations and supporting facts and theories. The FAC identifies the notice as LWDA Case No. LWDA-CM-1106185-25. Plaintiff alleges that the LWDA did not notify her within 65 days that it intended to investigate. (FAC, ¶¶ 100-101.)

Plaintiff filed the FAC on August 25, 2025. The amendment added the PAGA representative claim to the existing class claims.

At an initial status conference on January 8, 2026, the Court lifted a stay on class-certification discovery and directed Plaintiff to reserve a class-certification hearing in November 2026. The parties advised the Court that they were interested in private mediation, but no mediation had yet been scheduled. Plaintiff thereafter attempted to follow up regarding mediation but, according to her counsel, received no substantive response.

On March 17, 2026, Plaintiff served the following four sets of initial written discovery on each defendant:

- Requests for Production, Set One;
- Special Interrogatories, Set One;
- Form Interrogatories-General, Set One; and
- Form Interrogatories-Employment, Set One.

The discovery served on Forward and OceanAir was substantively identical and sought, among other matters, class-member information, payroll and timekeeping data, wage statements, employment policies, break practices, expense-reimbursement information, employee complaints, and arbitration or collective-bargaining agreements.

The responses were initially due April 20, 2026. On that date, Defendants requested a two-week extension, which Plaintiff granted, making the extended deadline May 4, 2026. Defendants did not serve responses or objections by that date.

On May 5, 2026, Plaintiff emailed defense counsel requesting immediate responses and document production.

On May 7, 2026 Plaintiff sent a formal letter allowing Defendants until May 14 to respond. According to Plaintiff, Defendants did not respond to either communication, seek another extension, serve written responses, or produce documents.

On May 29, 2026, Plaintiff filed eight motions to compel initial responses (one motion for each of the four discovery devices directed to each Defendant). The motions sought verified responses

without objections, production of responsive documents, and monetary sanctions. The motions were initially calendared for hearings in February and March 2027.

Because the original hearing dates fell after the anticipated class-certification deadline, Plaintiff applied ex parte to advance the motions. On June 23, 2026, the Court granted the application and advanced the motions to July 30, 2026 at 1:30 p.m. Plaintiff's counsel states that Ocegüera requested a telephone conference that same day but did not thereafter complete or reschedule the call.

Defendants filed substantially identical oppositions on July 16, 2026. They conceded that timely responses had not been served but requested relief from the resulting waiver of objections based on the transition in counsel. According to his declarations, defense counsel Anthony Ocegüera ("Ocegüera") states that the discovery deadline was missed during a transition in counsel. Ocegüera states that former handling attorney Andrew Sokolowski obtained the extension but left O'Hagan Meyer LLP on April 24, 2026 without notifying other attorneys or calendaring personnel of the new May 4 deadline. Ocegüera entered an appearance on June 23, 2026. Defendants contend that the missed deadline resulted from mistake, inadvertence, or excusable neglect and represented that they intended to serve substantive responses before the hearing.

The requests-for-production oppositions also assert privacy concerns concerning putative class-member contact information and credit-union-member financial information.

Plaintiff filed an omnibus reply and supplemental declaration on July 23, 2026. Plaintiff argues that Defendants may not obtain relief from waiver because they had not yet served substantially compliant responses and because the original calendaring mistake does not explain the continued noncompliance after the firm received repeated notice. Plaintiff's supplemental declaration states that, as of July 23, neither defendant had served any discovery responses or produced any responsive documents.

No trial date has yet been set in this case.

II. Discussion

A. Legal Standard: Motions to Compel Interrogatories and Requests for Production

1. Interrogatories

Under Code Civ. Proc. § 2030.290, if a party fails to serve a timely response to form or specially prepared interrogatories, the party waives the right to produce writings in lieu of answering under Code Civ. Proc. § 2030.230 and waives all objections, including objections based on the attorney-client privilege and attorney work product. The propounding party may move for an order compelling responses. (Code Civ. Proc. § 2030.290(a)-(b).)

An interrogatory response must answer each interrogatory separately and under oath. Each answer must be as complete and straightforward as the information reasonably available permits. When the responding party lacks personal knowledge, it must make a reasonable and good-faith

effort to obtain the information from other persons or organizations, unless the information is equally available to the propounding party. (Code Civ. Proc. §§ 2030.210, 2030.220, 2030.250.)

2. Requests for Production

Code Civ. Proc. § 2031.300 applies when a party fails to serve a timely response to an inspection or production demand. The failure waives all objections, including privilege and work-product objections, and authorizes the demanding party to move for an order compelling a response. (Code Civ. Proc. § 2031.300(a)-(b).)

A response to an inspection demand must respond separately to each demand by stating that the party will comply, lacks the ability to comply, or objects. A substantive response must be signed under oath by the responding party; for an entity, an officer or agent must verify the response. (Code Civ. Proc. §§ 2031.210, 2031.250.)

3. Motions to Compel Initial Responses

A motion to compel initial responses differs from a motion to compel further responses. It is not subject to the 45-day filing deadline applicable to further-response motions. Nor must the moving party establish good cause for document production or satisfy a statutory meet-and-confer requirement before filing. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404-405, 410-411.)

A separate statement is also unnecessary where no response has been provided. (Cal. Rules of Court, rule 3.1345(b)(1).)

4. Waiver and Relief From Waiver

The waiver of objections occurs by operation of law when the response deadline passes without a timely response. Once waiver occurs, the burden shifts to the responding party to establish entitlement to relief. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, supra, 148 Cal.App.4th at 404, 408-409.)

The court may relieve the responding party from waiver only if it finds both that:

1. The party has subsequently served responses substantially complying with the applicable statutory response requirements; and
2. The failure to respond timely resulted from mistake, inadvertence, or excusable neglect.

Both requirements must be satisfied. A promise or stated intention to serve responses in the future does not itself satisfy the statutory prerequisite that substantially compliant responses have already been served. (Code Civ. Proc. §§ 2030.290(a), 2031.300(a); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, supra, 148 Cal.App.4th at 404, 407-408.)

The Discovery Act provides the exclusive mechanism for relief from discovery waiver. A party cannot rely on the mandatory attorney-fault provision of Code Civ. Proc. § 473(b), although general principles developed under Code Civ. Proc. § 473 may inform the court's assessment of mistake, inadvertence, or excusable neglect. (*Scottsdale Insurance Co. v. Superior Court* (1997) 59 Cal.App.4th 263, 274-276.)

Under these principles, the party seeking relief must act diligently after learning of the default and must present competent evidence establishing a reasonable cause for the failure. Relief is generally applied liberally where the default is promptly corrected and the opposing party will not be prejudiced. Conversely, ordinary workload pressure, tactical decisions, or neglect that continues after the error becomes known may be found inexcusable. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233-235; *Scottsdale Insurance Co. v. Superior Court*, 59 Cal.App.4th at 275-276.)

5. Effect of Untimely Responses

The service of untimely responses after a motion is filed does not automatically moot a motion to compel initial responses. The court retains authority to hear the motion, enforce the waiver of objections, determine whether the late responses satisfy the relief sought, and impose sanctions. Depending on the circumstances, the court may compel responses without objections, find part of the motion unnecessary because substantive responses have been served, or address the adequacy of the responses under the procedures applicable to further-response motions. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, supra, 148 Cal.App.4th at 407-410.)

6. Monetary Sanctions

Failure to respond to an authorized discovery method constitutes a misuse of the discovery process. Unsuccessfully opposing a discovery motion without substantial justification is also a misuse. (§ 2023.010(d), (h).)

Code Civ. Proc. §§ 2030.29(c), and 2031.300(c) direct the court to impose a monetary sanction against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel initial responses, unless the court finds substantial justification or other circumstances making sanctions unjust. Code Civ. Proc. §§ 2023.010 and 2023.030 authorize recovery of the reasonable expenses, including attorney fees, incurred because of the discovery misuse.

“Substantial justification” generally exists when the discovery dispute is genuine, even though the court ultimately resolves it against the losing party. Sanctions ordinarily should be imposed where no genuine dispute exists and a party's conduct unnecessarily forces the matter to court. Willfulness is not required for a monetary sanction. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1286-1287, 1291-1292.)

A sanctions request must identify in the notice every party, person, or attorney against whom sanctions are sought, specify the type of sanction requested, and be supported by a memorandum and a declaration establishing the amount claimed. (Code Civ. Proc. § 2023.040.)

B. Defendants Waived All Discovery Objections and Have Not Established the Statutory Grounds for Relief from Waiver

1. The Motions are Procedurally Proper

Plaintiff served Requests for Production, Special Interrogatories, Form Interrogatories-General, and Form Interrogatories-Employment on each defendant on March 17, 2026. After Plaintiff granted an extension through May 4, 2026, neither Defendant served any responses or objections. Plaintiff sent an overdue notice on May 5, 2026 and a formal letter on May 7 allowing until May 14, but still received nothing.

A motion to compel initial responses is not subject to the 45-day deadline, good-cause showing, or meet-and-confer requirement applicable to motions to compel further responses. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404-405.

The opposition papers repeatedly mischaracterize these as motions to compel “further” responses. That labeling error does not change the nature of the motions.

2. Defendants waived their objections, however, the Court will permit objections based on attorney-client privilege and the work-product doctrine.

A party that fails to serve timely interrogatory responses waives all objections, including privilege and work product. The same rule applies to inspection demands. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a).)

Defendants concede that the May 4 deadline was missed. Their oppositions do not contend that timely responses were served; instead, they ask the Court to excuse the default based on former counsel’s failure to communicate or calendar the extended deadline. A representative opposition states only that Defendants “intend” to serve responses before the hearing. As of July 23, Defendants had yet to provide responses to discovery.

The Court finds that Defendants waived all objections with the exception of objections based on the attorney-client privilege and work-product doctrine. To the extent Defendants assert objections on either or both of these grounds, Defendants are ordered to provide a privilege log with the responses.

3. The Privacy Arguments Do Not Justify Denying the Motions

In the RFP oppositions, Defendants contend that certain requests implicate credit-union-member information and putative class member privacy. Those concerns do not avoid the statutory waiver.

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Putative class member contact information is generally discoverable, although an opt-out notice may be used to protect employee privacy. *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 554 upheld that procedure in a wage-and-hour class action.

The Court may therefore state that:

- Defendants' objections have been waived except for those based on attorney-client privilege and the work-product doctrine and subject to a production of a privilege log;
- The parties may employ a prompt *Belaire-West* notice before producing private employee contact information; and
- Genuinely sensitive nonparty financial data, such as account numbers, Social Security numbers, or transaction details, may be addressed through redaction, a stipulated confidentiality protocol, or a promptly filed stipulated protective-order or motion.

Those safeguards do not excuse written responses, revive waived objections, or postpone production of nonprivate responsive material.

4. Reduced Monetary Sanctions Are Awarded

Code Civ. Proc. §§ 2030.290 and 2031.300 require monetary sanctions against a party, person, or attorney who unsuccessfully opposes a motion to compel, unless the opposition was substantially justified or sanctions would be unjust. Reasonable expenses and attorney fees may be imposed against the person responsible for the discovery misuse.

Plaintiff requests the following sanctions against each defendant:

- RFP: \$2,275
- Special Interrogatories: \$2,065
- Form Interrogatories-General: \$1,400
- Form Interrogatories-Employment: \$1,225

The combined request totals \$13,930.

Some reduction is appropriate because:

- The requests were identical between Defendants;
- The legal memoranda and declarations were substantially duplicative;
- The oppositions raised the same defense;
- Plaintiff filed one omnibus reply rather than eight separate replies; and
- The requested amounts effectively charge twice for much of the same work.

A reasonable consolidated sanction is \$6,965, representing the fees claimed for one complete set of the four discovery motions. Because the admitted failure arose from counsel's case transition,

calendaring, and subsequent handling, and because no client misconduct is shown, the sanction is imposed against O'Hagan Meyer LLP alone, payable within 30 days.

IV. Disposition

Plaintiff Kimberly Lynn Ash's eight motions to compel initial discovery responses are GRANTED.

1. Within 20 calendar days after service of notice of this ruling:
2. Defendant Forward Member Solutions, LLC shall serve verified, Code-compliant responses without objections except those that are based on attorney-client privilege and the work-product doctrine to Plaintiff's Requests for Production, Special Interrogatories, Form Interrogatories-General, and Form Interrogatories-Employment, all Set One.
3. Defendant OceanAir Federal Credit Union shall serve verified, Code-compliant responses without objections except those that are based on attorney-client privilege and the work-product doctrine to the same four sets of discovery.
4. Each Defendant shall concurrently produce all responsive documents in its possession, custody, or control. The parties may use a prompt *Belaire-West* notice procedure for putative class member contact information and may agree upon reasonable redactions or confidentiality protections for nonparty financial information, but those matters shall not delay service of the written responses or production of nonprivate responsive documents.
5. To the extent Defendants assert any objections based on either or both the two allowable grounds, Defendants shall produce a privilege log.
6. Defendants' requests for relief from waiver are DENIED except as specified herein.
7. Monetary sanctions are awarded in favor of Plaintiff and against O'Hagan Meyer LLP in the amount of \$6,965, payable within 30 calendar days.

Plaintiff's request to extend the class-certification deadline is DENIED without prejudice.

Counsel for Plaintiff to give notice.